

Judge extends restraining order in Benton County, Mo., data center case

Hearing addressed whether county can enforce moratorium on data center project



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Published: Sep. 21, 2026 at 6:39 PM CDT | Updated: 3 hours ago



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WARSAW, Mo. (KY3) - A judge heard arguments on Monday in a lawsuit filed by a data center developer against Benton County commissioners over a moratorium on data centers.

The hearing was a continuation of an [ongoing case](#) involving the moratorium and the developer's lawsuit.

A restraining order was granted on Sept. 8. Since then, the developer, Trent Overhue, with NSIC6 LLC, closed on a roughly 12-acre property on old Highway 65 and started clearing the land. The purchase closed on Sept. 9. Overhue intends to build two separate buildings, each around 20,000 square feet.

Today's hearing addressed whether the judge should grant a preliminary injunction to keep the county from enforcing the moratorium.

Commissioner testimony

Presiding Commissioner Steve Daleske testified that commissioners met with Overhue on June 24 about the possibility of a data center at a different location, further north on Highway BB. Daleske said no final word was given on where a data center would be built.

According to Daleske, commissioners never signed a non-disclosure agreement, and they were not given any documentation showing a purchase was final or in the works. Daleske said commissioners had no contact with Overhue after the June 24 meeting and did not know about the project's current location before they signed the moratorium on Aug. 10.

Daleske said commissioners went forward with the moratorium with the hopes of gathering data and answering questions about data centers. The moratorium lasts six months.

The county also argues the moratorium should be valid because NSI6 LLC was not legally its own company until August 13, three days after the moratorium was issued.

Developer testimony

Overhue testified that he purposely chose Benton County because there is no planning and zoning to keep him from building a data center.

George Hall, who attended the hearing opposed to the data center, responded to that testimony.

"Well, my main concern on this data center situation is the fact that the developer himself has stated that he particularly picks third-class counties, rural areas. That covers 90 counties in Missouri. When he does that, then he disenfranchises the property owners, the taxpayers, as well as the voters. Because he's saying, now you have no say, I'll do whatever I want. It don't work that way," Hall said.

Judge's ruling

The judge extended the current temporary restraining order and is urging caution in moving forward with construction on the data center until a final decision is made. No word on when that decision will come.

Related Springfield lawsuit

The same company is suing Springfield over its data center moratorium. NSI claims the property at 2900 S. National Ave. that it is trying to develop is identified as “administrative and professional offices,” and zoning allows “data processing services.” NSI says the moratorium does not apply.

The lawsuit also says city planners approved the project before the moratorium was put in place. NSI is asking the court to lift the moratorium.

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